

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chris Olmsted	Team: Squad #09	CCRB Case #: 202103223	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/11/2021 6:14 PM, Tuesday, 05/11/2021 7:20 PM	Location of Incident: vicinity of 2797 86th Street; 2575 Coney Island Ave	18 Mo. SOL 11/11/2022	Precinct: 61		
Date/Time CV Reported Tue, 05/18/2021 12:28 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/27/2021 9:35 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Lynch	24326	967177	061 PCT
2. POM Brian Henn	19752	950580	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Smithu Samuel	02294	933322	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Lynch	Abuse: On May 11, 2022, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Nicholas Lynch stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants	A . Exonerated
B . POM Brian Henn	Abuse: On May 11, 2022, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants	B . Exonerated
C . POM Brian Henn	Force: On May 11, 2022, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn used a non-lethal restraining device on § 87(2)(b)	C . Exonerated
D . POM Brian Henn	Abuse: On May 11, 2022, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn threatened § 87(2)(b) with the use of force.	D . Exonerated
E . POM Brian Henn	Abuse: On May 11, 2022, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . POM Brian Henn	Abuse: On May 11, 2022, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn searched § 87(2)(b)	F . Exonerated
G . POM Brian Henn	Discourtesy: On May 11, 2022, at approximately 19:20, in the vicinity of 2575 Coney Island Ave in Brooklyn, Police Officer Brian Henn spoke discourteously to § 87(2)(b)	G . Unsubstantiated
H . POM Brian Henn	Abuse: On May 11, 2022, at approximately 19:20, in the vicinity of 2575 Coney Island Ave in Brooklyn, Police Officer Brian Henn interfered with § 87(2)(b) use of a recording device.	H . Substantiated

Officer(s)	Allegation	Investigator Recommendation
I . POM Brian Henn	Abuse: On May 11, 2022, at approximately 19:20, in the vicinity of 2575 Coney Island Ave in Brooklyn, Police Officer Brian Henn threatened to arrest § 87(2)(b)	I . Substantiated

Case Summary

On May 18, 2021, § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB). IAB filed it under log § 87(2)(b) and referred the FADO allegations to the CCRB under log § 87(2)(b). The CCRB received the complaint on May 27, 2021.

On May 11, 2021, at approximately 6:14 p.m., outside of 2797 86th Street in Brooklyn, PO Nicholas Lynch and PO Brian Henn of the 61st Precinct stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants (**Allegations A and B: Abuse of Authority, Exonerated**). PO Henn used his taser against § 87(2)(b) (**Allegation C: Force, Exonerated**), threatened to use his taser against § 87(2)(b) (**Allegation D: Abuse of Authority, Exonerated**), searched the vehicle (**Allegation E: Abuse of Authority, Exonerated**), and searched § 87(2)(b) handbag (**Allegation F: Abuse of Authority, Exonerated**).

At approximately 7:20 p.m., in the vicinity of 2575 Coney Island Ave in Brooklyn (the 61st Precinct Stationhouse), PO Henn allegedly spoke discourteously to § 87(2)(b) (**Allegation G: Discourtesy, Unsubstantiated**), interfered with § 87(2)(b) use of a recording device (**Allegation H: Abuse of Authority, Substantiated**), and threatened to arrest § 87(2)(b) (**Allegation I: Abuse of Authority, Substantiated**).

§ 87(2)(b) was arrested during this incident on an active bench warrant (Board Review [BR] 01) and for criminal possession of narcotics (BR 02).

NYPD Legal provided 33 BWC videos in two requests related to this incident (BR 03)(BR 04), including material videos from PO Henn (BR 05)(BR 06).

§ 87(2)(b) took recordings on her cell phone during this incident. (BR 07)

This case was reassigned from Investigator Aaron Gibbons to the undersigned on January 11, 2022.

Findings and Recommendations

Allegation (A) Abuse of Authority: On May 11, 2021, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Nicholas Lynch stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants

Allegation (B) Abuse of Authority: On May 11, 2021, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants

It is undisputed that on May 11, 2021, at 5:47 p.m., an individual called 911 and reported that a man in a black vehicle with dark tints pointed a gun at her brother outside of 2790 86th Street in Brooklyn before driving away with a female companion (BR 08).

BWC footage from PO Henn shows between 00:00 and 13:44 officers, including PO Henn and PO Lynch, responding to the location and encountering § 87(2)(b) in a dark sedan with dark tints outside of 2797 86th Street. When the vehicle first appears on BWC, § 87(2)(b) is exiting the driver's seat and the vehicle is in a metered parking space. § 87(2)(b) exits the vehicle and walks into a nearby store. He does not pay the meter. PO Henn and PO Lynch run the license plate of the car and determine it belongs to § 87(2)(b). PO Henn asks § 87(2)(b) for permission to search the car and § 87(2)(b) declines. § 87(2)(b) calls § 87(2)(b) and she comes to the scene. PO Henn tells § 87(2)(b) that she may not drive her car away from the scene because officers might tow it. He states a supervisor is on the way and the supervisor will determine whether officers will tow the car (BR 05).

In *People v. Marley*, 201 A.D.2d 925, the Appellate Division of the Supreme Court of New York held that an officer had "a reasonable suspicion of criminal activity justifying his stop of defendant's vehicle" where an officer stopped a vehicle matching a witnesses' description within three quarters of a mile of a crime scene. (BR 09)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A & B** be closed as **Exonerated**.

Allegation (C) Force: On May 11, 2021, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn used a non-lethal restraining device on § 87(2)(b).

Allegation (D) Abuse of Authority: On May 11, 2021, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn threatened § 87(2)(b) with the use of force.

Allegation (E) Abuse of Authority: On May 11, 2021, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (F) Abuse of Authority: On May 11, 2021, at approximately 18:14, in the vicinity of 2797 86th Street in Brooklyn, Police Officer Brian Henn searched § 87(2)(b)

PO Henn's BWC recording of the incident shows beginning at 16:16 PO Henn stating that § 87(2)(b) has been previously arrested on gun charges in § 87(2)(b) car. At 19:20 PO Henn determines via searches on his department cell phone that an open warrant exists for § 87(2)(b) arrest. Between 19:36 and 20:50, officers including PO Henn arrest § 87(2)(b). Officers approach § 87(2)(b) who is sitting in the passenger seat of the vehicle and ask him to step out. § 87(2)(b) does so. Officers tell § 87(2)(b) he is under arrest and attempts to take him into custody. § 87(2)(b) reaches into the vehicle and PO Henn uses his taser against § 87(2)(b) (BR 05).

PO Henn's BWC recording further shows between 21:20 and 22:32, immediately after officers have arrested § 87(2)(b) PO Henn states, "he threw something into the backseat" and tells § 87(2)(b) who is in the vehicle, "Ma'am, get out of the car." § 87(2)(b) refuses. PO Henn states, "Ma'am, I will taser you next if you don't get out of the car now." § 87(2)(b) does not exit the vehicle. PO Henn opens the rear passenger side door and repeats that § 87(2)(b) threw something into the backseat of the vehicle. § 87(2)(b) asks PO Henn if PO Henn "feels good" about tasing § 87(2)(b). PO Henn states, "You wouldn't stop moving. You were reaching into the back of the car, I feared for my safety." While they have this conversation, PO Henn picks up a wrapped dollar bill in plain view on the backseat, inspects it, and returns it to the vehicle. He removes items from the storage space in the rear door and tosses them onto the back seat. He does not find a weapon and closes the vehicle door (BR 05).

PO Henn's BWC recording further shows between 26:27 and 27:00 that as § 87(2)(b) is preparing to exit the vehicle PO Henn indicates her handbag inside the vehicle and states, "Make sure there's no gun in that bag." PO Henn walks around the car to the driver's seat, where § 87(2)(b) is sitting, and states, "Ma'am, I want to make sure he didn't put anything in your bag. Ma'am, the blue bag." He orders her to open it, she does, he looks inside, he does not find a firearm, and he moves away (BR 05).

PO Henn stated to the CCRB that he deployed his taser because he believed § 87(2)(b) was in possession of a firearm or trying to take possession of a firearm inside the vehicle. He stated he threatened to taser § 87(2)(b) when she refused to exit the vehicle because he feared she would access this firearm (BR 10).

Patrol Guide Procedure 221-08 states, "A CEW [Conducted Energy Weapons] should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present." (BR 11)

In People v. Torres 74 N.Y.2d 224, the Court of Appeals of New York held, "under our own 'automobile exception' to the rule against warrantless searches, an automobile's passenger compartment, and closed containers within that compartment, may be searched 'where police have

validly arrested an occupant * * * and * * * have reason to believe that the car may contain evidence related to the crime for which the occupant was arrested or that a weapon may be discovered or a means of escape thwarted" [Emphasis and notation in original] (BR 12)

Officers responded to a call alleging a man traveling with a female companion in a black vehicle with dark tints pointed a firearm at an individual. On scene they encountered § 87(2)(b) in a black vehicle with dark tints. During officers' investigation, § 87(2)(b) a female companion of § 87(2)(b) arrived and stated the car was hers. During officers' investigation, officers discovered that § 87(2)(b) had an active bench warrant related to an arrest for possessing a loaded weapon.

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations C and D** be closed as **Exonerated**.

§ 87(2)(g)

It is recommended that **Allegations E and F** be closed as **Exonerated**.

Allegation (G) Discourtesy: On May 11, 2021, at approximately 19:20, in the vicinity of 2575 Coney Island Ave in Brooklyn, Police Officer Brian Henn spoke discourteously to § 87(2)(b).

§ 87(2)(b) alleged that at the stationhouse during his arrest processing PO Henn stated to him, "I'm sorry for being a dickhead. I'm not usually a dickhead like that." (BR 13)

PO Henn denied making that statement and alleged that it was § 87(2)(b) who apologized to PO Henn for acting badly. (BR 10)

BWC footage from PO Abbate, PO Lynch, and PO Hionas capture parts of § 87(2)(b) arrest processing. Neither of the above interactions occur on the recordings. All three videos end before § 87(2)(b) has been discharged from the stationhouse. (BR 04)

Patrol Guide Procedure 200-02 states officers pledge to "render [their] services with courtesy and civility." (BR 14)

Both § 87(2)(b) and PO Henn testified to interacting with each other during § 87(2)(b) arrest processing beyond what appears on BWC footage. What BWC video exists confirms § 87(2)(b) and PO Henn could have interacted after officers deactivated their cameras. § 87(2)(g)

It is recommended that **Allegation G** be closed as **Unsubstantiated**.

Allegation (H) Abuse of Authority: On May 11, 2021, at approximately 19:20, in the vicinity of 2575 Coney Island Ave in Brooklyn, Police Officer Brian Henn interfered with § 87(2)(b) use of a recording device.

Allegation (I) Abuse of Authority: On May 11, 2021, at approximately 19:20, in the vicinity of 2575 Coney Island Ave in Brooklyn, Police Officer Brian Henn threatened to arrest § 87(2)(b).

PO Henn's BWC recording of his inventory search of § 87(2)(b) vehicle in the parking lot of the 61st Precinct at approximately 7:20 p.m. shows beginning at 2:20 that while PO Henn

searches the vehicle § 87(2)(b) begins recording PO Henn on her cell phone. She is standing on the sidewalk outside the parking lot but recording the interior of the lot. PO Henn states, “Ma'am you can't record on department facilities. Just letting you know you're not allowed to record on department property, ok? Ma'am you can't record back here. You're not allowed. I'm warning you, if you continue to record I will arrest you.” § 87(2)(b) states she is ending her recording and does so. (BR 06).

PO Henn initially stated to the CCRB that he recalled conducting the inventory search but did not recall interacting with § 87(2)(b) at that time. After watching his BWC recording from 2:20 to 2:50, PO Henn acknowledged that he threatened to arrest an individual for recording on police property, independently identified the individual shown in the footage as § 87(2)(b) and stated that although he saw these things in the recording he did not independently recall the interaction. (BR 15)

PO Henn stated that he has arrested civilians in the past for recording on police property. He stated there is a sign inside the precinct that advises civilians they may not record on police property but stated he did not know whether § 87(2)(b) entered the precinct during this incident. PO Henn stated that to his understanding the rule against recording on police property is based on NYPD policy and has no relation to trespass laws. He stated § 87(2)(b) was not trespassing, and that he told her she could be arrested if she continued to record not because of where she was but because of the area captured in her recording. PO Henn stated that when civilians are recording on police property officers are not required to ask them to leave before telling them they will be arrested. He stated, “we just ask them not to record, and we tell them, ‘don’t record, don’t record, don’t record,’ and then she’s still recording when I said, ‘don’t record,’ so then I said if she continues to record, based on what I just said, she’ll be arrested if she doesn’t stop recording.” (BR 15)

PO Henn made an unsolicited call to the CCRB after his interview in which he stated that when he returned to his command he took a photograph of the sign inside the stationhouse regarding civilians recording on police property to which he referred in his interview. He further volunteered that he had spoken with other officers about where civilians can and cannot record. PO Henn stated, “the thing is - I asked, ‘can you record the inside of the department?’ and they said, ‘no.’ I said, ‘but, you're on the sidewalk.’ Apparently, you can record from the sidewalk into the building. I said, ‘but the sign says you can't record of the inside of the building. So, that makes no sense to me.’” PO Henn later reiterated, “The admin lieutenant, everyone's saying the same thing, but apparently you can - if you're on the public sidewalk you can record anything in the, whatever it may be.” (BR 16)

PO Henn provided the photograph he took of the signs inside the precinct about recording. The photograph shows a sign attached to an interior door that says, “Members of the public are prohibited from audio/video recording or photography inside this facility.” (BR 17)

New York City Administrative Code §14-189 (“Right to record police activities,” “Right to Record Act”) states, “A person may record police activities and maintain custody and control of any such recording and of any property or instruments used in such recording. Nothing in this chapter shall be construed to permit a person to engage in actions that physically interfere with an official and lawful police function, or to prevent the seizure of any property or instruments used in a recording of police activities where the seizure is otherwise authorized by law, or to prohibit any officer from enforcing any other provision of law.” (BR 18)

On May 11, 2021, Patrol Guide Procedure 203-29 stated, “Members of the public are not allowed to photograph and/or record police activity within Department facilities. Members of the service may order any member of the public who is photographing or recording within Department facilities to stop such activity. If such person refuses to stop, they then should be ordered to leave the premises. If such person refuses to leave the premises, members of the service may take proper enforcement action under the trespass statutes (i.e., Penal Law sections 140.05 and 140.10).” After this incident, this procedure was moved to Administrative Guide 304-21 (BR 19).

New York City law permits civilians to record police officers. The NYPD Patrol Guide only prohibited civilians from recording “within department facilities.” The sign inside PO Henn’s stationhouse specifically states civilians may not record “inside this facility.” § 87(2)(b) was outside the precinct on a public sidewalk, recording something readily visible to the general public when PO Henn interfered with her recording. § 87(2)(g)

it is recommended that **Allegation H** be closed as **Substantiated**.

New York City law states civilians have a right to record police activities. The Patrol Guide did not challenge this right and did not assert that recording on police property is an arrestable offence. § 87(2)(g)

it is recommended that **Allegation I** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party. (BR 21)
- PO Lynch has been a member-of-service for three years and this is the first CCRB complaint in which he has been named as a subject.
- PO Henn has been a member of service for 11 years and has been a subject in eight other CCRB complaints and 21 other allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 13, 2022, the New York City Office of the Comptroller found no record of a Notice of Claim being filed in regards to this incident (BR 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 9

Investigator: Christopher Olmsted Investigator Chris Olmsted 09/13/2022
Signature Print Title & Name Date

Squad Leader: Wassim Abedrabbo IM Wassim Abedrabbo 09/14/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date